

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1176

By: Stark

AS INTRODUCED

An Act relating to crimes and punishment; amending 21 O.S. 2021, Section 843.4, which relates to exploitation of elderly or disabled adults; providing that certain purchases of residential property is exploitation; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 843.4, is amended to read as follows:

Section 843.4. A. As used in this section, "exploitation of an elderly person or disabled adult" means:

1. Knowingly, by deception or intimidation, obtaining or using, or endeavoring to obtain or use, an elderly person's or disabled adult's funds, assets, or property with the intent to temporarily or permanently deprive the elderly person or disabled adult of the use, benefit, or possession of the funds, assets, or property, or to benefit someone other than the elderly person or disabled adult, by a person who:

1 a. stands in a position of trust and confidence with the
2 elderly person or disabled adult, or

3 b. has a business relationship with the elderly person or
4 disabled adult, or

5 2. Obtaining or using, endeavoring to obtain or use, or
6 conspiring with another to obtain or use an elderly person's or
7 disabled adult's funds, assets, or property with the intent to
8 temporarily or permanently deprive the elderly person or disabled
9 adult of the use, benefit, or possession of the funds, assets, or
10 property, or to benefit someone other than the elderly person or
11 disabled adult, by a person who knows or reasonably should know that
12 the elderly person or disabled adult lacks the capacity to consent;
13 or

14 3. Knowingly seeks out or solicits the purchase of residential
15 property of an elderly person or disabled adult by purchasing the
16 property at less than seventy percent (70%) of the actual market
17 value of the residential property. This shall include those who
18 enter into a purchase contract with an elderly person or disabled
19 adult to purchase their property for less than seventy percent (70%)
20 of actual market value of the residential property and then sell the
21 rights of the purchase contract to another buyer who purchases the
22 property.

23 B. 1. If the funds, assets, or property involved in the
24 exploitation of the elderly person or disabled adult are valued at

1 One Hundred Thousand Dollars (\$100,000.00) or more, the violator
2 commits a felony punishable by imprisonment in the custody of the
3 Department of Corrections for a term not more than fifteen (15)
4 years and by a fine in an amount not exceeding Ten Thousand Dollars
5 (\$10,000.00).

6 2. If the funds, assets, or property involved in the
7 exploitation of the elderly person or disabled adult are valued at
8 less than One Hundred Thousand Dollars (\$100,000.00), the violator
9 commits a felony punishable by imprisonment in the custody of the
10 Department of Corrections for a term not more than ten (10) years
11 and by a fine in an amount not exceeding Ten Thousand Dollars
12 (\$10,000.00).

13 C. For purposes of this section, "elderly person" means any
14 person sixty-two (62) years of age or older.

15 SECTION 2. This act shall become effective November 1, 2025.

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